



**U.S. Citizenship  
and Immigration  
Services**

**Non-Precedent Decision of the  
Administrative Appeals Office**

In Re: 36404651

Date: JAN. 23, 2025

Appeal of California Service Center Decision

Form I-129, Petition for Nonimmigrant Worker (H-1B)

The Petitioner, a law firm, seeks to temporarily employ the Beneficiary as a bilingual client case manager under the H-1B nonimmigrant classification for specialty occupations. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(i)(b), 8 U.S.C. § 1101(a)(15)(H)(i)(b). The H-1B program allows a U.S. employer to file a petition with U.S. Citizenship and Immigration Services (USCIS) to temporarily employ a qualified foreign worker in a position that requires both: (a) the theoretical and practical application of a body of highly specialized knowledge; and (b) the attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum prerequisite for entry into the position.

The California Service Center Director denied the Form I-129, Petition for a Nonimmigrant Worker (petition), concluding the record did not establish that the offered position qualified as a specialty occupation. In doing so, the Director decided the Petitioner's acceptable array of fields it would accept to qualify for the offered position were too disparate and not sufficiently related to the position's duties, the position did not meet the mandatory definition of a specialty occupation, nor did the record show the petitioning organization submitted evidence sufficient to meet the regulatory criteria 8 C.F.R. § 214.2(h)(4)(iii)(A)(1)–(4). The matter is now before us on appeal under 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. Section 291 of the Act; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal. On appeal, the Petitioner offers similar eligibility statements they presented to the Director and offer additional evidence with the appeal.

We adopt and affirm the Director's ultimate determination. *See Matter of Burbano*, 20 I&N Dec. 872, 874 (BIA 1994); *see also Giday v. INS*, 113 F.3d 230, 234 (D.C. Cir. 1997) (noting that the practice of adopting and affirming the decision below “is not only common practice, but universally accepted”).

We further add that would question the substantive nature of the position as the Petitioner provided seven broad responsibilities of the position in which more than one-third were either directly copied or very closely paraphrased from the Department of Labor's (DOL) Occupational Information Network

(O\*NET) OnLine details report for the occupational category for Paralegals and Legal Assistants. That is the same standard occupational classification the Petitioner designated on the DOL ETA Form 9035 & 9035E, Labor Condition Application for Nonimmigrant Workers (LCA). The remaining responsibilities were overly vague. Those broad responsibilities consisted of the following:

- Investigate facts and law of cases and search pertinent sources, such as public records and internet sources, to determine causes of action and to prepare cases for filing;
- Prepare affidavits or other legal documents, such as legal correspondence, and organize and maintain documents in paper or electronic filing system; Manage and direct a large volume of civil cases for tort plaintiff and claimant clients;
- Meet with and/or correspond with defendants, court officials, or other individuals involved in legal processes to provide information and clarify issues while advocating for and showing empathy and compassion for clients;
- Maintain effective communication with clients regarding legal matters in English and Spanish;
- Collaborate with team with attorneys, paralegals, and legal assistants on a large volume of cases (mass tort); and
- Apply technical skills such as computer literacy and software and database proficiency.

The generalized nature of these responsibilities, and the related content in the response to the request for evidence, calls into question the substantive nature of the position. Providing generic job duties from O\*NET or another internet source for an offered position is generally insufficient to establish eligibility. *Cf. Fedin Bros. Co., Ltd. v. Sava*, 724 F. Supp. 1103, 1108 (E.D.N.Y. 1989), *aff'd*, 905 F.2d 41 (2d. Cir. 1990) (stating specifics are an important indication of the nature of a beneficiary's duties, otherwise meeting the requirements would simply be a matter of providing a job title or reiterating the regulations.). The duties themselves provide the nature of the employment. *Id.* While this type of description may be appropriate when defining the range of duties that may be performed within an occupational category, it does not adequately convey the substantive work that a foreign national would perform within the Petitioner's business operations.

DOL guidance states that for a wage level determination, it is important that the job description include "sufficient information to determine the complexity of the job duties, the level of judgment, the amount and level of supervision, and the level of understanding required to perform the job duties." U.S. Dep't of Labor, Emp't & Training Admin., *Prevailing Wage Determination Policy Guidance*, Nonagric. Immigration Programs (rev. Nov. 2009), available at [http://www.foreignlaborcert.doleta.gov/pdf/NPWHC\\_Guidance\\_Revised\\_11\\_2009.pdf](http://www.foreignlaborcert.doleta.gov/pdf/NPWHC_Guidance_Revised_11_2009.pdf). The generic nature of the presented duties adversely affects our ability to decide whether the LCA corresponds with and supports the petition. Further, we are unable to assess, categorize, and realize the Petitioner's offered job due to the position's overly generalized duties, which hinders our ability to conclude whether the position qualifies as a specialty occupation under any of the criteria enumerated at 8 C.F.R. § 214.2(h)(4)(iii)(A)(1)-(4).

**ORDER:** The appeal is dismissed.